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AS AMENDED

BILL NO. 2584

and

Paxton of the Senate

An Act relating to physician assistants; **amending 59 O.S. 2021, Section 353.1, as amended by Section 6, Chapter 288, O.S.L. 2022 (59 O.S. Supp. 2024, Section 353.1), which relates to definitions used in the Oklahoma Pharmacy Act; modifying definitions; amending 59 O.S. 2021, Section 353.1a, which relates to the Oklahoma Pharmacy Act; clarifying which prescriptions for controlled dangerous substances pharmacists may dispense; amending 59 O.S. 2021, Sections 519.2, 519.3, 519.6, and 519.11, as amended by Section 1, Chapter 164, O.S.L. 2022 (59 O.S. Supp. 2024, Section 519.11), which relate to the Physician Assistant Act; modifying definitions; increasing the number of Physician Assistant Committee members; clarifying certain requirements for the chair; increasing member requirements for a quorum; adding provisions regarding postgraduate clinical practice; clarifying filing requirements for practice agreements; clarifying language regarding practicing medicine, prescribing drugs, and using medical supplies under a practice agreement; modifying billing and payment authority; prescribing certain malpractice insurance requirements; amending 63 O.S. 2021, Section 1-317, as last amended by Section 133, Chapter 452, O.S.L. 2024 (63 O.S. Supp. 2024, Section 1-317), which relates to the Oklahoma Public Health Code; clarifying the authority of physician assistants to carry out certain functions; amending 63 O.S. 2021, Sections 2-101, as last amended by Section 1, Chapter 308, O.S.L. 2024, and 2-312, as amended by Section 2, Chapter 184, O.S.L. 2022 (63 O.S. Supp. 2024, Sections 2-101 and 2-312), which relate to the Uniform Controlled Dangerous Substances**

1 Act; modifying definitions related to physician
2 assistants; clarifying which physician assistants may
3 prescribe and administer certain controlled
4 substances; and repealing 59 O.S. 2021, Section
5 521.4, which relates to physician supervision and
6 practice agreements.

7 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

8 **SECTION 1.** AMENDATORY 59 O.S. 2021, Section 353.1, as
9 amended by Section 6, Chapter 288, O.S.L. 2022 (59 O.S. Supp. 2024,
10 Section 353.1), is amended to read as follows:

11 Section 353.1. For the purposes of the Oklahoma Pharmacy Act:

12 1. "Accredited program" means those seminars, classes,
13 meetings, work projects, and other educational courses approved by
14 the ~~Board~~ State Board of Pharmacy for purposes of continuing
15 professional education;

16 2. "Act" means the Oklahoma Pharmacy Act;

17 3. "Administer" means the direct application of a drug, whether
18 by injection, inhalation, ingestion, or any other means, to the body
19 of a patient;

20 4. "Assistant pharmacist" means any person presently licensed
21 as an assistant pharmacist in ~~the State of Oklahoma~~ this state by
22 the Board pursuant to Section 353.10 of this title and for the
23 purposes of the Oklahoma Pharmacy Act shall be considered the same
24 as a pharmacist, except where otherwise specified;

5. "Board" or "State Board" means the State Board of Pharmacy;

1 6. "Certify" or "certification of a prescription" means the
2 review of a filled prescription by a licensed pharmacist or a
3 licensed practitioner with dispensing authority to confirm that the
4 medication, labeling, and packaging of the filled prescription are
5 accurate and meet all requirements prescribed by state and federal
6 law. For the purposes of this paragraph, "licensed practitioner"
7 shall not include optometrists with dispensing authority;

8 7. "Chemical" means any medicinal substance, whether simple or
9 compound or obtained through the process of the science and art of
10 chemistry, whether of organic or inorganic origin;

11 8. "Compounding" means the combining, admixing, mixing,
12 diluting, pooling, reconstituting, or otherwise altering of a drug
13 or bulk drug substance to create a drug. Compounding includes the
14 preparation of drugs or devices in anticipation of prescription drug
15 orders based on routine, regularly observed prescribing patterns;

16 9. "Continuing professional education" means professional,
17 pharmaceutical education in the general areas of the socioeconomic
18 and legal aspects of health care; the properties and actions of
19 drugs and dosage forms; and the etiology, characteristics, and
20 therapeutics of the diseased state;

21 10. "Dangerous drug", "legend drug", "prescription drug", or
22 "Rx Only" means a drug:

- 23 a. for human use subject to 21 U.S.C., Section 353(b)(1),
24 or

b. is labeled "Prescription Only", or labeled with the following statement: "Caution: Federal law restricts this drug ~~except for~~ to use by or on the order of a licensed veterinarian.";

11. "Director" means the Executive Director of the State Board of Pharmacy unless context clearly indicates otherwise;

12. "Dispense" or "dispensing" means the interpretation, evaluation, and implementation of a prescription drug order including the preparation and delivery of a drug or device to a patient or a patient's agent in a suitable container appropriately labeled for subsequent administration to, or use by, a patient. Dispense includes sell, distribute, leave with, give away, dispose of, deliver, or supply;

13. "Dispenser" means a retail pharmacy, hospital pharmacy, a group of chain pharmacies under common ownership and control that do not act as a wholesale distributor, or any other person authorized by law to dispense or administer prescription drugs, and the affiliated warehouses or distributions of such entities under common ownership and control that do not act as a wholesale distributor. For the purposes of this paragraph, ~~"dispenser"~~ dispenser does not mean a person who dispenses only products to be used in animals in accordance with 21 U.S.C., Section 360b(a) (5);

14. "Distribute" or "distribution" means the sale, purchase, trade, delivery, handling, storage, or receipt of a product, and

1 does not include the dispensing of a product pursuant to a
2 prescription executed in accordance with 21 U.S.C., Section
3 353(b) (1) or the dispensing of a product approved under 21 U.S.C.,
4 Section 360b(b); provided, taking actual physical possession of a
5 product or title shall not be required;

6 15. "Doctor of Pharmacy" means a person licensed by the Board
7 to engage in the practice of pharmacy. The terms "pharmacist",
8 "D.Ph.", and "Doctor of Pharmacy" shall be interchangeable and shall
9 have the same meaning wherever they appear in the Oklahoma Statutes
10 and the rules promulgated by the Board;

11 16. "Drug outlet" means all manufacturers, repackagers,
12 outsourcing facilities, wholesale distributors, third-party
13 logistics providers, pharmacies, and all other facilities which are
14 engaged in dispensing, delivery, distribution, or storage of
15 dangerous drugs;

16 17. "Drugs" means all medicinal substances and preparations
17 recognized by the United States ~~Pharmacopoeia~~ Pharmacopeia and
18 National Formulary, or any revision thereof, and all substances and
19 preparations intended for external and/or internal use in the cure,
20 diagnosis, mitigation, treatment, or prevention of disease in humans
21 or animals and all substances and preparations, other than food,
22 intended to affect the structure or any function of the body of a
23 human or animals;

1 18. "Drug sample" means a unit of a prescription drug packaged
2 under the authority and responsibility of the manufacturer that is
3 not intended to be sold and is intended to promote the sale of the
4 drug;

5 19. "Durable medical equipment" has the same meaning as
6 provided by ~~Section 2 of this act~~ Section 375.2 of this title;

7 20. "Filled prescription" means a packaged prescription
8 medication to which a label has been affixed which contains such
9 information as is required by the Oklahoma Pharmacy Act;

10 21. "Hospital" means any institution licensed as a hospital by
11 this state for the care and treatment of patients, or a pharmacy
12 operated by the Oklahoma Department of Veterans Affairs;

13 22. "Licensed practitioner" means:

- 14 a. an allopathic physician,
- 15 b. an osteopathic physician,
- 16 c. a podiatric physician,
- 17 d. a dentist,
- 18 e. a veterinarian ~~or~~ ,
- 19 f. an optometrist, or
- 20 g. a physician assistant,

21 licensed to practice and authorized to prescribe dangerous drugs
22 within the scope of practice of such practitioner;

23 23. "Manufacturer" or "virtual manufacturer" means with respect
24 to a product:

- 1 a. a person that holds an application approved under 21
2 U.S.C., Section 355 or a license issued under 42
3 U.S.C., Section 262 for such product, or if such
4 product is not the subject of an approved application
5 or license, the person who manufactured the product,
6 b. a co-licensed partner of the person described in
7 subparagraph a of this paragraph that obtains the
8 product directly from a person described in this
9 subparagraph or subparagraph a of this paragraph,
10 c. an affiliate of a person described in subparagraph a
11 or b of this paragraph who receives the product
12 directly from a person described in this subparagraph
13 or in subparagraph a or b of this paragraph, or
14 d. a person who contracts with another to manufacture a
15 product;

16 24. "Manufacturing" means the production, preparation,
17 propagation, compounding, conversion, or processing of a device or a
18 drug, either directly or indirectly by extraction from substances of
19 natural origin or independently by means of chemical or biological
20 synthesis and includes any packaging or repackaging of the
21 substances or labeling or relabeling of its container, and the
22 promotion and marketing of such drugs or devices. The term
23 ~~"manufacturing"~~ manufacturing also includes the preparation and
24 promotion of commercially available products from bulk compounds for

1 resale by licensed pharmacies, licensed practitioners, or other
2 persons;

3 25. "Medical gas" means those gases including those in liquid
4 state upon which the manufacturer or distributor has placed one of
5 several cautions, such as "Rx Only", in compliance with federal law;

6 26. "Medical gas order" means an order for medical gas issued
7 by a licensed prescriber;

8 27. "Medical gas distributor" means a person licensed to
9 distribute, transfer, wholesale, deliver, or sell medical gases on
10 drug orders to suppliers or other entities licensed to use,
11 administer, or distribute medical gas and may also include a patient
12 or ultimate user;

13 28. "Medical gas supplier" means a person who dispenses medical
14 gases on drug orders only to a patient or ultimate user;

15 29. "Medicine" means any drug or combination of drugs which has
16 the property of curing, preventing, treating, diagnosing, or
17 mitigating diseases, or which is used for that purpose;

18 30. "Nonprescription drugs" means medicines or drugs which are
19 sold without a prescription and which are prepackaged for use by the
20 consumer and labeled in accordance with the requirements of the
21 statutes and regulations of this state and the federal government.
22 Such items shall also include medical and dental supplies and
23 bottled or nonbulk chemicals which are sold or offered for sale to
24 the general public if such articles or preparations meet the

1 requirements of the Federal Food, Drug, and Cosmetic Act, 21
2 U.S.C.A., Section 321 et seq.;

3 31. "Outsourcing facility" including "virtual outsourcing
4 facility" means a facility at one geographic location or address
5 that:

- 6 a. is engaged in the compounding of sterile drugs,
- 7 b. has elected to register as an outsourcing facility,
- 8 and
- 9 c. complies with all requirements of 21 U.S.C., Section
10 353b;

11 32. "Package" means the smallest individual saleable unit of
12 product for distribution by a manufacturer or repackager that is
13 intended by the manufacturer for ultimate sale to the dispenser of
14 such product. For the purposes of this paragraph, "individual
15 saleable unit" means the smallest container of a product introduced
16 into commerce by the manufacturer or repackager that is intended by
17 the manufacturer or repackager for individual sale to a dispenser;

18 33. "Person" means an individual, partnership, limited
19 liability company, corporation, or association, unless the context
20 otherwise requires;

21 34. "Pharmacist-in-charge" or "PIC" means the pharmacist
22 licensed in this state responsible for the management control of a
23 pharmacy and all other aspects of the practice of pharmacy in a
24

1 licensed pharmacy as ~~defined~~ provided by Section 353.18 of this
2 title;

3 35. "Pharmacy" means a place regularly licensed by the State
4 Board of Pharmacy in which prescriptions, drugs, medicines,
5 chemicals, and poisons are compounded or dispensed or such place
6 where pharmacists practice the profession of pharmacy, or a pharmacy
7 operated by the Oklahoma Department of Veterans Affairs;

8 36. "Pharmacy technician", "technician", "Rx tech", or "tech"
9 means a person issued a ~~Technician~~ technician permit by the State
10 Board of Pharmacy to assist the pharmacist and perform
11 nonjudgmental, technical, manipulative, non-discretionary functions
12 in the prescription department under the immediate and direct
13 supervision of a pharmacist;

14 37. "Poison" means any substance which when introduced into the
15 body, either directly or by absorption, produces violent, morbid, or
16 fatal changes, or which destroys living tissue with which such
17 substance comes into contact;

18 38. "Practice of pharmacy" means:

- 19 a. the interpretation and evaluation of prescription
20 orders,
21 b. the compounding, dispensing, administering, and
22 labeling of drugs and devices, except labeling by a
23 manufacturer, repackager, or distributor of
24

- 1 nonprescription drugs and commercially packaged legend
2 drugs and devices,
- 3 c. the participation in drug selection and drug
4 utilization reviews,
- 5 d. the proper and safe storage of drugs and devices and
6 the maintenance of proper records thereof,
- 7 e. the responsibility for advising by counseling and
8 providing information, where professionally necessary
9 or where regulated, of therapeutic values, content,
10 hazards, and use of drugs and devices,
- 11 f. the offering or performing of those acts, services,
12 operations, or transactions necessary in the conduct,
13 operation, management, and control of a pharmacy, or
- 14 g. the provision of those acts or services that are
15 necessary to provide pharmaceutical care;

16 39. "Preparation" means an article which may or may not contain
17 sterile products compounded in a licensed pharmacy pursuant to the
18 order of a licensed prescriber;

19 40. "Prescriber" means a person licensed in this state who is
20 authorized to prescribe dangerous drugs within the scope of practice
21 of the person's profession;

22 41. "Prescription" means and includes any order for drug or
23 medical supplies written or signed, or transmitted by word of mouth,
24 telephone, or other means of communication:

- 1 a. by a licensed prescriber,
- 2 b. (1) under the supervision of ~~an Oklahoma licensed~~
3 ~~practitioner~~ a supervising physician, by an Oklahoma
4 licensed advanced practice registered nurse, or
5 (2) by an Oklahoma licensed physician assistant
6 pursuant to a practice agreement, or
- 7 c. by an Oklahoma licensed wholesaler or distributor as
8 authorized in Section 353.29.1 of this title;

9 42. "Product" means a prescription drug in a finished dosage
10 form for administration to a patient without substantial further
11 manufacturing, such as capsules, tablets, and lyophilized products
12 before reconstitution. ~~"Product"~~ Product does not include blood
13 components intended for transfusion, radioactive drugs or biologics
14 and medical gas;

15 43. "Repackager", including "virtual repackager", means a
16 person who owns or operates an establishment that repacks and
17 relabels a product or package for further sale or distribution
18 without further transaction;

19 44. "Sterile drug" means a drug that is intended for parenteral
20 administration, an ophthalmic or oral inhalation drug in aqueous
21 format, or a drug that is required to be sterile under state and
22 federal law;

23 45. "Supervising physician" means an individual holding a
24 current license to practice as a physician from the State Board of

1 Medical Licensure and Supervision, pursuant to the provisions of the
2 Oklahoma Allopathic Medical and Surgical Licensure and Supervision
3 Act, or the State Board of Osteopathic Examiners, pursuant to the
4 provisions of the Oklahoma Osteopathic Medicine Act, who supervises
5 an advanced practice registered nurse as defined in Section 567.3a
6 of this title,
7 and who is not in training as an intern, resident, or fellow. To be
8 eligible to supervise an advanced practice registered nurse, such
9 physician shall remain in compliance with the rules promulgated by
10 the State Board of Medical Licensure and Supervision or the State
11 Board of Osteopathic Examiners;

12 46. "Supportive personnel" means technicians and auxiliary
13 supportive persons who are regularly paid employees of a pharmacy
14 who work and perform tasks in the pharmacy as authorized by Section
15 353.18A of this title;

16 47. "Third-party logistics provider" including "virtual third-
17 party logistics provider" means an entity that provides or
18 coordinates warehousing, or other logistics services of a product in
19 interstate commerce on behalf of a manufacturer, wholesale
20 distributor, or dispenser of a product but does not take ownership
21 of the product, nor have responsibility to direct the sale or
22 disposition of the product. For the purposes of this paragraph,
23 ~~"third-party logistics provider"~~ third-party logistics provider does
24 not include shippers and the United States Postal Service;

1 48. "Wholesale distributor" including "virtual wholesale
2 distributor" means a person other than a manufacturer, a
3 manufacturer's co-licensed partner, a third-party logistics
4 provider, or repackager engaged in wholesale distribution as defined
5 by 21 U.S.C., Section 353(e) (4) as amended by the Drug Supply Chain
6 Security Act;

7 49. "County jail" means a facility operated by a county for the
8 physical detention and correction of persons charged with, or
9 convicted of, criminal offenses or ordinance violations or persons
10 found guilty of civil or criminal contempt;

11 50. "State correctional facility" means a facility or
12 institution that houses a prisoner population under the jurisdiction
13 of the Department of Corrections;

14 51. "Unit dose package" means a package that contains a single
15 dose drug with the name, strength, control number, and expiration
16 date of that drug on the label; and

17 52. "Unit of issue package" means a package that provides
18 multiple doses of the same drug, but each drug is individually
19 separated and includes the name, lot number, and expiration date.

20 SECTION 2. AMENDATORY 59 O.S. 2021, Section 353.1a, is
21 amended to read as follows:

22 Section 353.1a A. Prescribing authority shall be allowed,
23 under the medical direction of a supervising physician, for an
24 advanced practice nurse recognized by the Oklahoma Board of Nursing

1 in one of the following categories: advanced registered nurse
2 practitioners, clinical nurse specialists, or certified nurse-
3 midwives. The advanced practice nurse may write or sign, or
4 transmit by word of mouth, telephone or other means of communication
5 an order for drugs or medical supplies that is intended to be
6 filled, compounded, or dispensed by a pharmacist. The supervising
7 physician and the advanced practice nurse shall be identified at the
8 time of origination of the prescription and the name of the advanced
9 practice nurse shall be printed on the prescription label.

10 B. Pharmacists may dispense prescriptions for non-controlled
11 prescription drugs authorized by an advanced practice nurse or
12 physician assistant, not located in Oklahoma, provided that they are
13 licensed in the state in which they are actively prescribing.

14 C. Pharmacists may only dispense prescriptions for controlled
15 dangerous substances prescribed by ~~an~~:

16 1. An advanced practice nurse or physician assistant licensed
17 in the State of Oklahoma and supervised by an Oklahoma-licensed
18 practitioner; or

19 2. A physician assistant licensed in the State of Oklahoma and
20 supervised by an Oklahoma-licensed practitioner.

21 SECTION 3. AMENDATORY 59 O.S. 2021, Section 519.2, is
22 amended to read as follows:

23 Section 519.2 As used in the Physician Assistant Act:
24

1 1. "Board" means the State Board of Medical Licensure and
2 Supervision;

3 2. "Committee" means the Physician Assistant Committee;

4 3. "Practice of medicine" means services which require training
5 in the diagnosis, treatment and prevention of disease, including the
6 use and administration of drugs, and which are performed by
7 physician assistants so long as such services are within the
8 physician assistants' skill~~7~~. For a physician assistant required to
9 practice under supervision of a delegating physician, services form
10 a component of the physician's scope of practice, and are provided
11 with physician supervision, including authenticating by signature
12 any form that may be authenticated by the delegating physician's
13 signature with prior delegation by the physician;

14 4. ~~"Patient care setting" means and includes, but is not~~
15 ~~limited to, a physician's office, clinic, hospital, nursing home,~~
16 ~~extended care facility, patient's home, ambulatory surgical center,~~
17 ~~hospice facility or any other setting authorized by the delegating~~
18 ~~physician;~~

19 5~~7~~. "Physician assistant" means a health care professional,
20 qualified by academic and clinical education and licensed by the
21 State Board of Medical Licensure and Supervision, to practice
22 medicine ~~with physician supervision~~ as a physician assistant;

23 6~~7~~. 5. "Delegating physician" means an individual holding a
24 license in good standing as a physician from the State Board of

1 Medical Licensure and Supervision or the State Board of Osteopathic
2 Examiners, who supervises one or more physician assistants and
3 delegates decision making pursuant to the practice agreement;

4 ~~7.~~ 6. "Supervision" means overseeing or delegating the
5 activities of the medical services rendered by a physician assistant
6 through a practice agreement between a ~~medical doctor or osteopathic~~
7 delegating physician ~~performing procedures or directly or indirectly~~
8 ~~involved with the treatment of a patient,~~ and the physician
9 assistant working jointly toward a common goal of providing
10 services. Delegation shall be defined by the practice agreement.
11 The physical presence of the delegating physician is not required as
12 long as the delegating physician and physician assistant are or can
13 be easily in contact with each other by telecommunication. At all
14 times a physician assistant required to practice under supervision
15 shall be considered an agent of the delegating physician;

16 ~~8.~~ 7. "Telecommunication" means the use of electronic
17 technologies to transmit words, sounds or images for interpersonal
18 communication, clinical care (telemedicine) and review of electronic
19 health records; and

20 ~~9.~~ 8. "Practice agreement" means a written agreement between a
21 physician assistant and ~~the~~ a delegating physician concerning the
22 scope of practice of the physician assistant to only be determined
23 by the delegating physician and the physician assistant based on the
24 education, training, skills and experience of the physician

1 assistant. The agreement shall involve the joint formulation,
2 discussion and agreement on the methods of supervision and
3 collaboration for diagnosis, consultation and treatment of medical
4 conditions and shall include the scope of and any limitations on
5 prescribing. A practice agreement is required for a physician
6 assistant as described in subsection C of Section 519.6 of this
7 title.

8 SECTION 4. AMENDATORY 59 O.S. 2021, Section 519.3, is
9 amended to read as follows:

10 Section 519.3 A. There is hereby created the Physician
11 Assistant Committee, which shall be composed of ~~seven (7)~~ nine (9)
12 members. ~~Three~~ Five members of the Committee shall be physician
13 assistants appointed by the State Board of Medical Licensure and
14 Supervision from a list of qualified individuals submitted by the
15 Oklahoma Academy of Physician Assistants. One member shall be a
16 physician appointed by the Board from its membership. One member
17 shall be a physician appointed by the Board from a list of qualified
18 individuals submitted by the Oklahoma State Medical Association and
19 who is not a member of the Board. One member shall be a physician
20 appointed by the State Board of Osteopathic Examiners from its
21 membership. One member shall be a physician appointed by the State
22 Board of Osteopathic Examiners from a list of qualified individuals
23 submitted by the Oklahoma Osteopathic Association and who is not a
24 member of said board.

1 B. The term of office for each member of the Committee shall be
2 five (5) years.

3 C. The Committee shall meet at least quarterly. At the initial
4 meeting of each calendar year, the Committee members shall elect a
5 chair from the physician assistant members. The chair or his or her
6 designee shall represent the Committee at all meetings of the Board.
7 ~~Four~~ Five members shall constitute a quorum for the purpose of
8 conducting official business of the Committee.

9 D. The State Board of Medical Licensure and Supervision is
10 hereby granted the power and authority to promulgate rules, which
11 are in accordance with the provisions of Section 519.1 et seq. of
12 this title, governing the requirements for licensure as a physician
13 assistant, as well as to establish standards for training, approve
14 institutions for training, and regulate the standards of practice of
15 a physician assistant after licensure, including the power of
16 revocation of a license.

17 E. The State Board of Medical Licensure and Supervision is
18 hereby granted the power and authority to investigate all
19 complaints, hold hearings, subpoena witnesses and initiate
20 prosecution concerning violations of Section 519.1 et seq. of this
21 title. When such complaints involve physicians licensed by the
22 State Board of Osteopathic Examiners, the State Board of Osteopathic
23 Examiners shall be officially notified of such complaints.

1 F. 1. The Committee shall advise the Board on all matters
2 pertaining to the practice of physician assistants.

3 2. The Committee shall review and make recommendations to the
4 Board on all applications for licensure as a physician assistant and
5 all applications to practice which shall be approved by the Board.
6 When considering applicants for licensure, to establish standards of
7 training or approve institutions for training, the Committee shall
8 include the Director, or designee, of all Physician Assistant
9 educational programs conducted by institutions of higher education
10 in the state as members.

11 3. The Committee shall assist and advise the Board in all
12 hearings involving physician assistants who are deemed to be in
13 violation of Section 519.1 et seq. of this title or the rules of the
14 Board.

15 SECTION 5. AMENDATORY 59 O.S. 2021, Section 519.6, is
16 amended to read as follows:

17 Section 519.6 A. No health care services may be performed by a
18 physician assistant unless a current license is on file with and
19 approved by the State Board of Medical Licensure and Supervision.

20 B. A physician assistant with six thousand two hundred forty
21 (6,240) or more hours of postgraduate clinical practice experience
22 who has reported those hours to the Board shall not be required to
23 practice under the supervision of a delegating physician.
24

1 1. A physician assistant may report the completion of
2 postgraduate clinical practice experience to the Board at any time
3 after completion of at least six thousand two hundred forty (6,240)
4 such hours.

5 2. Hours earned prior to the enactment of this subsection shall
6 be counted towards the six thousand two hundred forty (6,240) hours.

7 3. The Board shall maintain, make available, and keep updated,
8 on the Internet website of the Board, a list of physician assistants
9 who have reported completion of six thousand two hundred forty
10 (6,240) or more postgraduate clinical practice experience hours.

11 4. The Board shall prescribe a form for reporting postgraduate
12 clinical practice experience by a physician assistant. The Board
13 shall make available and keep updated on the Internet website of the
14 Board the prescribed form. This reporting form may be filed
15 electronically. The Board shall not charge a fee for reporting
16 hours or filing of the prescribed form.

17 5. Nothing in this subsection shall prohibit a physician
18 assistant from maintaining a practice agreement; however, such an
19 agreement is not required for a physician assistant with the
20 reported six thousand two hundred forty (6,240) hours of
21 postgraduate clinical practice experience, provided any practice
22 agreements are subject to the requirements of paragraphs 1, 2, 3,
23 and 4 of subsection C of this section.
24

1 6. Nothing in this subsection shall restrict the ability of the
2 Board to require supervision as a part of disciplinary action
3 against the license of a physician assistant.

4 C. A physician assistant with less than six thousand two
5 hundred forty (6,240) hours of postgraduate clinical practice
6 experience or who has completed six thousand two hundred forty
7 (6,240) hours but has not reported those hours to the Board shall
8 practice under the supervision of a delegating physician with the
9 following requirements:

10 1. All practice agreements and any amendments shall be filed
11 with the State Board of Medical Licensure and Supervision within ten
12 (10) business days of being executed. Practice agreements may be
13 filed electronically. The State Board of Medical Licensure and
14 Supervision shall not charge a fee for filing practice agreements or
15 amendments of to practice agreements;

16 ~~B.~~ 2. A physician assistant may have practice agreements with
17 multiple allopathic or osteopathic physicians. Each physician shall
18 be in good standing with the State Board of Medical Licensure and
19 Supervision or the State Board of Osteopathic Examiners;

20 ~~C.~~ 3. The delegating physician need not be physically present
21 nor be specifically consulted before each delegated patient care
22 service is performed by a physician assistant, so long as the
23 delegating physician and physician assistant are or can be easily in
24 contact with one another by means of telecommunication. In all

1 ~~patient care settings, the~~ The delegating physician shall provide
2 appropriate methods of participating in health care services
3 provided by the physician assistant including:

- 4 a. being responsible for the formulation or approval of
5 all orders and protocols, whether standing orders,
6 direct orders or any other orders or protocols, which
7 direct the delivery of health care services provided
8 by a physician assistant, and periodically reviewing
9 such orders and protocols,
- 10 b. regularly reviewing the health care services provided
11 by the physician assistant and any problems or
12 complications encountered,
- 13 c. being available physically or through telemedicine or
14 direct telecommunications for consultation, assistance
15 with medical emergencies or patient referral,
- 16 d. reviewing a sample of outpatient medical records.
17 Such reviews shall take place at a site agreed upon
18 between the delegating physician and physician
19 assistant in the practice agreement which may also
20 occur using electronic or virtual conferencing, and
- 21 e. that it remains clear that the physician assistant is
22 an agent of the delegating physician; but, in no event
23 shall the delegating physician be an employee of the
24 physician assistant-;

1 ~~D.~~ 4. In patients with newly diagnosed complex illnesses, the
2 physician assistant shall contact the delegating physician within
3 forty-eight (48) hours of the physician assistant's initial
4 examination or treatment and schedule the patient for appropriate
5 evaluation by the delegating physician as directed by the physician.
6 The delegating physician shall determine which conditions qualify as
7 complex illnesses based on the clinical setting and the skill and
8 experience of the physician assistant.

9 ~~E. 1. D.~~ A physician assistant ~~under the direction of a~~
10 ~~delegating physician not practicing under a practice agreement~~ may
11 prescribe written and oral prescriptions and orders. The physician
12 assistant not practicing under a practice agreement may prescribe
13 medical supplies, services, and drugs, including controlled
14 medications in Schedules ~~II~~ III through V pursuant to Section 2-312
15 of Title 63 of the Oklahoma Statutes, ~~and medical supplies and~~
16 ~~services as delegated by the delegating physician and as approved by~~
17 ~~the State Board of Medical Licensure and Supervision after~~
18 ~~consultation with the State Board of Pharmacy on the Physician~~
19 ~~Assistant Drug Formulary.~~ Physician assistants not practicing under
20 a practice agreement may not dispense drugs, but may request,
21 receive, and sign for professional samples and may distribute
22 professional samples to patients.

23 ~~2.~~ A physician assistant may write an order for a Schedule ~~II~~
24 ~~drug for immediate or ongoing administration on site.~~ Prescriptions

1 ~~and orders for Schedule II drugs written by a physician assistant~~
2 ~~must be included on a written protocol determined by the delegating~~
3 ~~physician and approved by the medical staff committee of the~~
4 ~~facility or by direct verbal order of the delegating physician.~~
5 ~~Physician assistants may not dispense drugs, but may request,~~
6 ~~receive, and sign for professional samples and may distribute~~
7 ~~professional samples to patients.~~

8 F. E. ~~A physician assistant may perform health care services in~~
9 ~~patient care settings as authorized by the delegating physician~~
10 practicing under a practice agreement may prescribe written and oral
11 prescriptions and orders. The physician assistant practicing under
12 a practice agreement may prescribe medical supplies, services, and
13 drugs, including controlled medications in Schedules II through V
14 pursuant to Section 2-312 of Title 63 of the Oklahoma Statutes,
15 written and oral prescriptions and orders only as delegated by the
16 delegating physician, and prescriptions and orders for Schedule II
17 drugs written by such physician assistant shall be included on a
18 written protocol determined by the delegating physician. Physician
19 assistants practicing under a practice agreement may not dispense
20 drugs, but may request, receive, and sign for professional samples
21 and may distribute professional samples to patients. Provided that
22 a physician assistant practicing under a practice agreement may not
23 prescribe any controlled medications in a Schedule that the
24 delegating physician is not registered to prescribe.

1 ~~G. F.~~ Each physician assistant licensed under the Physician
2 Assistant Act shall keep his or her license available for inspection
3 at the primary place of business and shall, when engaged in
4 professional activities, identify himself or herself as a physician
5 assistant.

6 ~~H. G.~~ A physician assistant shall be bound by the provisions
7 contained in Sections 725.1 through 725.5 of ~~Title 59 of the~~
8 ~~Oklahoma Statutes~~ this title.

9 H. 1. A physician assistant, or the employer of the physician
10 assistant on his or her behalf, shall carry malpractice insurance or
11 demonstrate proof of financial responsibility in a minimum amount of
12 One Million Dollars (\$1,000,000.00) per occurrence and Three Million
13 Dollars (\$3,000,000.00) in the aggregate per year. This requirement
14 shall apply only to the physician assistant and shall not be
15 construed as to require the physician assistant to provide
16 malpractice insurance coverage to any delegating physician.

17 2. A physician assistant who is employed by or under contract
18 with a federal agency that carries malpractice insurance in any
19 amount on behalf of the physician assistant shall be deemed in
20 compliance with paragraph 1 of this subsection when practicing under
21 such federal employment or contract. However, to the extent the
22 physician assistant practices outside of such federal employment or
23 contract, the physician assistant, or his or her employer, shall
24 comply with paragraph 1 of this subsection.

1 SECTION 6. AMENDATORY 59 O.S. 2021, Section 519.11, as
2 amended by Section 1, Chapter 164, O.S.L. 2022 (59 O.S. Supp. 2024,
3 Section 519.11), is amended to read as follows:

4 Section 519.11 A. Nothing in the Physician Assistant Act shall
5 be construed to prevent or restrict the practice, services or
6 activities of any persons of other licensed professions or personnel
7 supervised by licensed professions in this state from performing
8 work incidental to the practice of their profession or occupation,
9 if that person does not represent himself or herself as a physician
10 assistant.

11 B. Nothing stated in the Physician Assistant Act shall prevent
12 any hospital from requiring the physician assistant or the
13 delegating physician to meet and maintain certain staff appointment
14 and credentialing qualifications for the privilege of practicing as,
15 or utilizing, a physician assistant in the hospital.

16 C. ~~Nothing in the Physician Assistant Act shall be construed to~~
17 ~~permit a physician assistant to practice medicine or prescribe drugs~~
18 ~~and medical supplies in this state except when such actions are~~
19 ~~performed under the supervision and at the direction of a physician~~
20 ~~or physicians approved by the State Board of Medical Licensure and~~
21 ~~Supervision.~~

22 ~~D.~~ Nothing herein shall be construed to require licensure under
23 the Physician Assistant Act of a physician assistant student
24 enrolled in a physician assistant educational program accredited by

1 the Accreditation Review Commission on Education for the Physician
2 Assistant.

3 ~~E.~~ D. Notwithstanding any other provision of law, no one who is
4 not a physician licensed to practice medicine in this state may
5 perform acts restricted to such physicians pursuant to the
6 provisions of Section 1-731 of Title 63 of the Oklahoma Statutes.
7 This ~~paragraph~~ subsection is inseverable.

8 ~~F.~~ E. Nothing in the Physician Assistant Act shall limit the
9 activities of a physician assistant in the performance of their
10 duties if the physician assistant is employed by or under contract
11 with the United States Department of Veterans Affairs or if the
12 physician assistant is employed by, under contract with, or
13 commissioned by one of the uniformed services; provided, the
14 physician assistant must be currently licensed in this state or any
15 other state or currently credentialed as a physician assistant by
16 the United States Department of Veterans Affairs or the applicable
17 uniformed service. Any physician assistant who is employed by or
18 under contract with the United States Department of Veterans Affairs
19 or is employed by, under contract with, or commissioned by one of
20 the uniformed services and practices outside of such employment,
21 contract, or commission shall be subject to the Physician Assistant
22 Act while practicing outside of such employment, contract, or
23 commission. As used in this subsection, "uniformed services" shall
24

1 have the same meaning as provided by Title 10 of the ~~U.S.~~ United
2 States Code.

3 SECTION 7. AMENDATORY 63 O.S. 2021, Section 1-317v2, as
4 last amended by Section 133, Chapter 452, O.S.L. 2024 (63 O.S. Supp.
5 2024, Section 1-317v2), is amended to read as follows:

6 Section 1-317v2. A. A death certificate for each death which
7 occurs in this state shall be filed with the State Department of
8 Health, within three (3) days after such death.

9 B. The funeral director shall personally sign the death
10 certificate and shall be responsible for filing the death
11 certificate. If the funeral director is not available, the person
12 acting as such who first assumes custody of a dead body in
13 accordance with Section 1158 of Title 21 of the Oklahoma Statutes
14 shall personally sign and file the death certificate. The personal
15 data shall be obtained from the next of kin or the best qualified
16 person or source available. The funeral director or person acting
17 as such shall notify the person providing the personal data that it
18 is a felony to knowingly provide false data or misrepresent any
19 person's relationship to the decedent. The certificate shall be
20 completed as to personal data and delivered to the attending
21 physician or the medical examiner responsible for completing the
22 medical certification portion of the certificate of death within
23 twenty-four (24) hours after the death. No later than July 1, 2012,
24 the personal data, and no later than July 1, 2017, the medical

1 certificate portion, shall be entered into the prescribed electronic
2 system provided by the State Registrar of Vital Statistics and the
3 information submitted to the State Registrar of Vital Statistics.

4 The resultant certificate produced by the electronic system shall be
5 provided to the physician or medical examiner for medical
6 certification within twenty-four (24) hours after the death.

7 C. The medical certification shall be completed and signed
8 within forty-eight (48) hours after death by the physician,
9 physician assistant, or advanced practice registered nurse in charge
10 of the patient's care for the illness or condition which resulted in
11 death, except when inquiry as to the cause of death is required by
12 Section 938 of this title. No later than July 1, 2017, the medical
13 certification portion of certificate data shall be entered into the
14 prescribed electronic system provided by the State Registrar of
15 Vital Statistics and the information submitted to the State
16 Registrar of Vital Statistics.

17 D. In the event that the physician, physician assistant, or
18 advanced practice registered nurse in charge of the patient's care
19 for the illness or condition which resulted in death is not in
20 attendance at the time of death, the medical certification shall be
21 completed and signed within forty-eight (48) hours after death by
22 the physician, physician assistant, or advanced practice registered
23 nurse in attendance at the time of death, except:

1 1. When the patient is under hospice care at the time of death,
2 the medical certification may be signed by the hospice's medical
3 director; and

4 2. When inquiry as to the cause of death is required by Section
5 938 of this title.

6 Provided, that such certification, if signed by other than the
7 attending physician, physician assistant, or advanced practice
8 registered nurse, shall note on the face the name of the attending
9 physician, physician assistant, or advanced practice registered
10 nurse and that the information shown is only as reported.

11 E. A certifier completing cause of death on a certificate of
12 death who knows that a lethal drug, overdose or other means of
13 assisting suicide within the meaning of Sections 3141.2 through
14 3141.4 of this title caused or contributed to the death shall list
15 that means among the chain of events under cause of death or list it
16 in the box that describes how the injury occurred. If such means is
17 in the chain of events under cause of death or in the box that
18 describes how the injury occurred, the certifier shall indicate
19 "suicide" as the manner of death.

20 F. The authority of a physician assistant subject to subsection
21 C of Section 519.6 of Title 59 of the Oklahoma Statutes to carry out
22 the functions described in this section shall be governed by the
23 practice agreement as provided by Section 519.6 of Title 59 of the
24 Oklahoma Statutes.

SECTION 8. AMENDATORY 63 O.S. 2021, Section 2-101, as last amended by Section 1, Chapter 308, O.S.L. 2024 (63 O.S. Supp. 2024, Section 2-101), is amended to read as follows:

Section 2-101. As used in the Uniform Controlled Dangerous Substances Act:

1. "Acute pain" means pain, whether resulting from disease, accidental trauma, intentional trauma, or other cause that the practitioner reasonably expects to last only a short period of time. Acute pain does not include chronic pain, pain being treated as part of cancer care, hospice or other end-of-life care, or pain being treated as part of palliative care;

2. "Administer" means the direct application of a controlled dangerous substance, whether by injection, inhalation, ingestion or any other means, to the body of a patient, animal or research subject by:

a. a practitioner (or, in the presence of the practitioner, by the authorized agent of the practitioner), or

b. the patient or research subject at the direction and in the presence of the practitioner;

3. "Agent" means a peace officer appointed by and who acts on behalf of the Director of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control or an authorized person who acts on behalf of or at the direction of a person who manufactures, distributes,

1 dispenses, prescribes, administers or uses for scientific purposes
2 controlled dangerous substances but does not include a common or
3 contract carrier, public warehouser or employee thereof, or a person
4 required to register under the Uniform Controlled Dangerous
5 Substances Act;

6 4. "Anhydrous ammonia" means any substance that exhibits
7 cryogenic evaporative behavior and tests positive for ammonia;

8 5. "Board" means the Advisory Board to the Director of the
9 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control;

10 6. "Bureau" means the Oklahoma State Bureau of Narcotics and
11 Dangerous Drugs Control;

12 7. "Chronic pain" means pain that persists beyond the usual
13 course of an acute disease or healing of an injury. Chronic pain
14 may or may not be associated with an acute or chronic pathologic
15 process that causes continuous or intermittent pain over months or
16 years;

17 8. "Coca leaves" includes cocaine and any compound,
18 manufacture, salt, derivative, mixture or preparation of coca
19 leaves, except derivatives of coca leaves which do not contain
20 cocaine or ecgonine;

21 9. "Commissioner" or "Director" means the Director of the
22 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control;

1 10. "Control" means to add, remove or change the placement of a
2 drug, substance or immediate precursor under the Uniform Controlled
3 Dangerous Substances Act;

4 11. "Controlled dangerous substance" means a drug, substance or
5 immediate precursor in Schedules I through V of the Uniform
6 Controlled Dangerous Substances Act or any drug, substance or
7 immediate precursor listed either temporarily or permanently as a
8 federally controlled substance. Any conflict between state and
9 federal law with regard to the particular schedule in which a
10 substance is listed shall be resolved in favor of state law;

11 12. "Counterfeit substance" means a controlled substance which,
12 or the container or labeling of which without authorization, bears
13 the trademark, trade name or other identifying marks, imprint,
14 number or device or any likeness thereof of a manufacturer,
15 distributor or dispenser other than the person who in fact
16 manufactured, distributed or dispensed the substance;

17 13. "Deliver" or "delivery" means the actual, constructive or
18 attempted transfer from one person to another of a controlled
19 dangerous substance or drug paraphernalia, whether or not there is
20 an agency relationship;

21 14. "Dispense" means to deliver a controlled dangerous
22 substance to an ultimate user or human research subject by or
23 pursuant to the lawful order of a practitioner, including the
24 prescribing, administering, packaging, labeling or compounding

1 necessary to prepare the substance for such distribution.

2 "Dispenser" is a practitioner who delivers a controlled dangerous
3 substance to an ultimate user or human research subject;

4 15. "Distribute" means to deliver other than by administering
5 or dispensing a controlled dangerous substance;

6 16. "Distributor" means a commercial entity engaged in the
7 distribution or reverse distribution of narcotics and dangerous
8 drugs and who complies with all regulations promulgated by the
9 federal Drug Enforcement Administration and the Oklahoma State
10 Bureau of Narcotics and Dangerous Drugs Control;

11 17. "Drug" means articles:

- 12 a. recognized in the official United States Pharmacopeia,
13 official Homeopathic Pharmacopoeia of the United
14 States, or official National Formulary, or any
15 supplement to any of them,
- 16 b. intended for use in the diagnosis, cure, mitigation,
17 treatment or prevention of disease in man or other
18 animals,
- 19 c. other than food, intended to affect the structure or
20 any function of the body of man or other animals, and
- 21 d. intended for use as a component of any article
22 specified in this paragraph;

23 provided, however, the term drug does not include devices or their
24 components, parts or accessories;

1 18. "Drug paraphernalia" means all equipment, products, and
2 materials of any kind which are used, intended for use, or fashioned
3 specifically for use in planting, propagating, cultivating, growing,
4 harvesting, manufacturing, compounding, converting, producing,
5 processing, preparing, testing, analyzing, packaging, repackaging,
6 storing, containing, concealing, injecting, ingesting, inhaling, or
7 otherwise introducing into the human body, a controlled dangerous
8 substance in violation of the Uniform Controlled Dangerous
9 Substances Act including, but not limited to:

- 10 a. kits used, intended for use, or fashioned specifically
11 for use in planting, propagating, cultivating,
12 growing, or harvesting of any species of plant which
13 is a controlled dangerous substance or from which a
14 controlled dangerous substance can be derived,
- 15 b. kits used, intended for use, or fashioned specifically
16 for use in manufacturing, compounding, converting,
17 producing, processing, or preparing controlled
18 dangerous substances,
- 19 c. isomerization devices used, intended for use, or
20 fashioned specifically for use in increasing the
21 potency of any species of plant which is a controlled
22 dangerous substance,
- 23 d. testing equipment used, intended for use, or fashioned
24 specifically for use in identifying or in analyzing

- 1 the strength, effectiveness, or purity of controlled
2 dangerous substances,
- 3 e. scales and balances used, intended for use, or
4 fashioned specifically for use in weighing or
5 measuring controlled dangerous substances,
- 6 f. diluents and adulterants, such as quinine
7 hydrochloride, mannitol, mannite, dextrose, and
8 lactose used, intended for use, or fashioned
9 specifically for use in cutting controlled dangerous
10 substances,
- 11 g. separation gins and sifters used, intended for use, or
12 fashioned specifically for use in removing twigs and
13 seeds from, or in otherwise cleaning or refining,
14 marijuana,
- 15 h. blenders, bowls, containers, spoons, and mixing
16 devices used, intended for use, or fashioned
17 specifically for use in compounding controlled
18 dangerous substances,
- 19 i. capsules, balloons, envelopes, and other containers
20 used, intended for use, or fashioned specifically for
21 use in packaging small quantities of controlled
22 dangerous substances,
- 23 j. containers and other objects used, intended for use,
24 or fashioned specifically for use in parenterally

1 injecting controlled dangerous substances into the
2 human body,

3 k. hypodermic syringes, needles, and other objects used,
4 intended for use, or fashioned specifically for use in
5 parenterally injecting controlled dangerous substances
6 into the human body, except as authorized by Section
7 2-1101 of this title,

8 l. objects used, intended for use, or fashioned
9 specifically for use in ingesting, inhaling, or
10 otherwise introducing marijuana, cocaine, hashish, or
11 hashish oil into the human body, such as:

12 (1) metal, wooden, acrylic, glass, stone, plastic, or
13 ceramic pipes with or without screens, permanent
14 screens, hashish heads, or punctured metal bowls,

15 (2) water pipes,

16 (3) carburetion tubes and devices,

17 (4) smoking and carburetion masks,

18 (5) roach clips, meaning objects used to hold burning
19 material, such as a marijuana cigarette, that has
20 become too small or too short to be held in the
21 hand,

22 (6) miniature cocaine spoons and cocaine vials,

23 (7) chamber pipes,

24 (8) carburetor pipes,

- 1 (9) electric pipes,
2 (10) air-driven pipes,
3 (11) chillums,
4 (12) bongs, or
5 (13) ice pipes or chillers,
6 m. all hidden or novelty pipes, and
7 n. any pipe that has a tobacco bowl or chamber of less
8 than one-half (1/2) inch in diameter in which there is
9 any detectable residue of any controlled dangerous
10 substance as defined in this section or any other
11 substances not legal for possession or use;

12 provided, however, the term drug paraphernalia shall not include
13 separation gins intended for use in preparing tea or spice, clamps
14 used for constructing electrical equipment, water pipes designed for
15 ornamentation in which no detectable amount of an illegal substance
16 is found or pipes designed and used solely for smoking tobacco,
17 traditional pipes of an American Indian tribal religious ceremony,
18 antique pipes that are thirty (30) years of age or older, or drug
19 testing strips possessed by a person for purposes of determining the
20 presence of fentanyl or a fentanyl-related compound;

21 19. "Drug-dependent person" means a person who is using a
22 controlled dangerous substance and who is in a state of psychic or
23 physical dependence, or both, arising from administration of that
24 controlled dangerous substance on a continuous basis. Drug

1 dependence is characterized by behavioral and other responses which
2 include a strong compulsion to take the substance on a continuous
3 basis in order to experience its psychic effects, or to avoid the
4 discomfort of its absence;

5 20. "Harm-reduction services" means programs established to:

6 a. reduce the spread of infectious diseases related to
7 injection drug use,

8 b. reduce drug dependency, overdose deaths, and
9 associated complications, and

10 c. increase safe recovery and disposal of used syringes
11 and sharp waste;

12 21. "Hazardous materials" means materials, whether solid,
13 liquid, or gas, which are toxic to human, animal, aquatic, or plant
14 life, and the disposal of such materials is controlled by state or
15 federal guidelines;

16 22. "Home care agency" means any sole proprietorship,
17 partnership, association, corporation, or other organization which
18 administers, offers, or provides home care services, for a fee or
19 pursuant to a contract for such services, to clients in their place
20 of residence;

21 23. "Home care services" means skilled or personal care
22 services provided to clients in their place of residence for a fee;

23 24. "Hospice" means a centrally administered, nonprofit or for-
24 profit, medically directed, nurse-coordinated program which provides

1 a continuum of home and inpatient care for the terminally ill
2 patient and the patient's family. Such term shall also include a
3 centrally administered, nonprofit or for-profit, medically directed,
4 nurse-coordinated program if such program is licensed pursuant to
5 the provisions of the Uniform Controlled Dangerous Substances Act.
6 A hospice program offers palliative and supportive care to meet the
7 special needs arising out of the physical, emotional and spiritual
8 stresses which are experienced during the final stages of illness
9 and during dying and bereavement. This care is available twenty-
10 four (24) hours a day, seven (7) days a week, and is provided on the
11 basis of need, regardless of ability to pay. "Class A" Hospice
12 refers to Medicare-certified hospices. "Class B" refers to all
13 other providers of hospice services;

14 25. "Imitation controlled substance" means a substance that is
15 not a controlled dangerous substance, which by dosage unit
16 appearance, color, shape, size, markings or by representations made,
17 would lead a reasonable person to believe that the substance is a
18 controlled dangerous substance, or is a drug intended solely for
19 veterinary purposes that is not a controlled dangerous substance and
20 is being used outside of the scope of practice or normal course of
21 business, as defined by the State Board of Veterinary Medical
22 Examiners, or is a federal Food and Drug Administration-approved
23 drug that is not a controlled dangerous substance and is being used
24 outside the scope of approval for illicit purposes such as

1 adulterating or lacing other controlled dangerous substances. In
2 the event the appearance of the dosage unit or use is not reasonably
3 sufficient to establish that the substance is an imitation
4 controlled substance, the court or authority concerned should
5 consider, in addition to all other factors, the following factors:

- 6 a. statements made by an owner or by any other person in
7 control of the substance concerning the nature of the
8 substance, or its use or effect,
- 9 b. statements made to the recipient that the substance
10 may be resold for inordinate profit,
- 11 c. whether the substance is packaged in a manner normally
12 used for illicit controlled substances,
- 13 d. evasive tactics or actions utilized by the owner or
14 person in control of the substance to avoid detection
15 by law enforcement authorities,
- 16 e. prior convictions, if any, of an owner, or any other
17 person in control of the object, under state or
18 federal law related to controlled substances or fraud,
19 and
- 20 f. the proximity of the substances to controlled
21 dangerous substances;

22 26. "Immediate precursor" means a substance which the Director
23 has found to be and by regulation designates as being the principal
24 compound commonly used or produced primarily for use, and which is

1 an immediate chemical intermediary used, or likely to be used, in
2 the manufacture of a controlled dangerous substance, the control of
3 which is necessary to prevent, curtail or limit such manufacture;

4 27. "Initial prescription" means a prescription issued to a
5 patient who:

6 a. has never previously been issued a prescription for
7 the drug or its pharmaceutical equivalent in the past
8 year, or

9 b. requires a prescription for the drug or its
10 pharmaceutical equivalent due to a surgical procedure
11 or new acute event and has previously had a
12 prescription for the drug or its pharmaceutical
13 equivalent within the past year.

14 When determining whether a patient was previously issued a
15 prescription for a drug or its pharmaceutical equivalent, the
16 practitioner shall consult with the patient and review the medical
17 record and prescription monitoring information of the patient;

18 28. "Isomer" means the optical isomer, except as used in
19 subsections C and F of Section 2-204 of this title and paragraph 4
20 of subsection A of Section 2-206 of this title. As used in
21 subsections C and F of Section 2-204 of this title, isomer means the
22 optical, positional, or geometric isomer. As used in paragraph 4 of
23 subsection A of Section 2-206 of this title, the term isomer means
24 the optical or geometric isomer;

1 29. "Laboratory" means a laboratory approved by the Director as
2 proper to be entrusted with the custody of controlled dangerous
3 substances and the use of controlled dangerous substances for
4 scientific and medical purposes and for purposes of instruction;

5 30. "Manufacture" means the production, preparation,
6 propagation, compounding or processing of a controlled dangerous
7 substance, either directly or indirectly by extraction from
8 substances of natural or synthetic origin, or independently by means
9 of chemical synthesis or by a combination of extraction and chemical
10 synthesis. "Manufacturer" includes any person who packages,
11 repackages or labels any container of any controlled dangerous
12 substance, except practitioners who dispense or compound
13 prescription orders for delivery to the ultimate consumer;

14 31. "Marijuana" means all parts of the plant *Cannabis sativa*
15 L., whether growing or not; the seeds thereof; the resin extracted
16 from any part of such plant; and every compound, manufacture, salt,
17 derivative, mixture or preparation of such plant, its seeds or
18 resin, but shall not include:

- 19 a. the mature stalks of such plant or fiber produced from
20 such stalks,
21 b. oil or cake made from the seeds of such plant,
22 including cannabidiol derived from the seeds of the
23 marijuana plant,
24

- 1 c. any other compound, manufacture, salt, derivative,
2 mixture or preparation of such mature stalks (except
3 the resin extracted therefrom), including cannabidiol
4 derived from mature stalks, fiber, oil or cake,
5 d. the sterilized seed of such plant which is incapable
6 of germination,
7 e. for any person participating in a clinical trial to
8 administer cannabidiol for the treatment of severe
9 forms of epilepsy pursuant to Section 2-802 of this
10 title, a drug or substance approved by the federal
11 Food and Drug Administration for use by those
12 participants,
13 f. for any person or the parents, legal guardians or
14 caretakers of the person who have received a written
15 certification from a physician licensed in this state
16 that the person has been diagnosed by a physician as
17 having Lennox-Gastaut syndrome, Dravet syndrome, also
18 known as severe myoclonic epilepsy of infancy, or any
19 other severe form of epilepsy that is not adequately
20 treated by traditional medical therapies, spasticity
21 due to multiple sclerosis or due to paraplegia,
22 intractable nausea and vomiting, appetite stimulation
23 with chronic wasting diseases, the substance
24 cannabidiol, a nonpsychoactive cannabinoid, found in

1 the plant Cannabis sativa L. or any other preparation
2 thereof, that has a tetrahydrocannabinol concentration
3 not more than three-tenths of one percent (0.3%) and
4 that is delivered to the patient in the form of a
5 liquid,

6 g. any federal Food and Drug Administration-approved drug
7 or substance, or

8 h. industrial hemp, from the plant Cannabis sativa L. and
9 any part of such plant, whether growing or not, with a
10 delta-9 tetrahydrocannabinol concentration not more
11 than three-tenths of one percent (0.3%) on a dry-
12 weight basis which shall only be grown pursuant to the
13 Oklahoma Industrial Hemp Program and may be shipped
14 intrastate and interstate;

15 32. "Medical purpose" means an intention to utilize a
16 controlled dangerous substance for physical or mental treatment, for
17 diagnosis, or for the prevention of a disease condition not in
18 violation of any state or federal law and not for the purpose of
19 satisfying physiological or psychological dependence or other abuse;

20 33. "Mid-level practitioner" means an Advanced Practice
21 Registered Nurse as defined and within parameters specified in
22 Section 567.3a of Title 59 of the Oklahoma Statutes, or a certified
23 animal euthanasia technician as defined in Section 698.2 of Title 59
24 of the Oklahoma Statutes, or an animal control officer registered by

1 the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control
2 under subsection B of Section 2-301 of this title within the
3 parameters of such officer's duties under Sections 501 through 508
4 of Title 4 of the Oklahoma Statutes;

5 34. "Narcotic drug" means any of the following, whether
6 produced directly or indirectly by extraction from substances of
7 vegetable origin, or independently by means of chemical synthesis,
8 or by a combination of extraction and chemical synthesis:

- 9 a. opium, coca leaves and opiates,
- 10 b. a compound, manufacture, salt, derivative or
11 preparation of opium, coca leaves or opiates,
- 12 c. cocaine, its salts, optical and geometric isomers, and
13 salts of isomers,
- 14 d. ecgonine, its derivatives, their salts, isomers and
15 salts of isomers, and
- 16 e. a substance, and any compound, manufacture, salt,
17 derivative or preparation thereof, which is chemically
18 identical with any of the substances referred to in
19 subparagraphs a through d of this paragraph, except
20 that the words narcotic drug as used in Section 2-101
21 et seq. of this title shall not include decocainized
22 coca leaves or extracts of coca leaves, which extracts
23 do not contain cocaine or ecgonine;

1 35. "Opiate" or "opioid" means any Schedule II, III, IV or V
2 substance having an addiction-forming or addiction-sustaining
3 liability similar to morphine or being capable of conversion into a
4 drug having such addiction-forming or addiction-sustaining
5 liability. The terms do not include, unless specifically designated
6 as controlled under the Uniform Controlled Dangerous Substances Act,
7 the dextrorotatory isomer of 3-methoxy-n-methyl-morphinan and its
8 salts (dextromethorphan). The terms do include the racemic and
9 levorotatory forms;

10 36. "Opium poppy" means the plant of the species *Papaver*
11 *somniferum* L., except the seeds thereof;

12 37. "Palliative care" means a specialized medical service for
13 people of any age and at any stage of a serious illness or life-
14 altering medical event that focuses on navigating complex medical
15 decisions while providing patient autonomy and access to
16 information. Utilizing a holistic and interdisciplinary team
17 approach, palliative care addresses physical, intellectual,
18 emotional, social, and spiritual needs. Palliative care may be
19 provided in the inpatient, outpatient, or home care setting and
20 strives to improve quality of life for both the patient and the
21 family;

22 38. "Patient-provider agreement" means a written contract or
23 agreement that is executed between a practitioner and a patient
24

1 prior to the commencement of treatment for chronic pain using an
2 opioid drug as a means to:

- 3 a. explain the possible risk of development of physical
4 or psychological dependence in the patient and prevent
5 the possible development of addiction,
- 6 b. document the understanding of both the practitioner
7 and the patient regarding the patient-provider
8 agreement of the patient,
- 9 c. establish the rights of the patient in association
10 with treatment and the obligations of the patient in
11 relation to the responsible use, discontinuation of
12 use, and storage of opioid drugs, including any
13 restrictions on the refill of prescriptions or the
14 acceptance of opioid prescriptions from practitioners,
- 15 d. identify the specific medications and other modes of
16 treatment, including physical therapy or exercise,
17 relaxation, or psychological counseling, that are
18 included as a part of the patient-provider agreement,
- 19 e. specify the measures the practitioner may employ to
20 monitor the compliance of the patient including, but
21 not limited to, random specimen screens and pill
22 counts, and
- 23 f. delineate the process for terminating the agreement,
24 including the consequences if the practitioner has

1 reason to believe that the patient is not complying
2 with the terms of the agreement. Compliance with the
3 consent items described in this paragraph shall
4 constitute a valid, informed consent for opioid
5 therapy. The practitioner shall be held harmless from
6 civil litigation for failure to treat pain if the
7 event occurs because of nonadherence by the patient
8 with any of the provisions of the patient-provider
9 agreement;

10 39. "Peace officer" means a police officer, sheriff, deputy
11 sheriff, district attorney's investigator, investigator from the
12 Office of the Attorney General, or any other person elected or
13 appointed by law to enforce any of the criminal laws of this state
14 or of the United States;

15 40. "Person" means an individual, corporation, government or
16 governmental subdivision or agency, business trust, estate, trust,
17 partnership or association, or any other legal entity;

18 41. "Poppy straw" means all parts, except the seeds, of the
19 opium poppy, after mowing;

20 42. "Practitioner" means:

- 21 a. (1) a medical doctor or osteopathic physician,
22 (2) a dentist,
23 (3) a podiatrist,
24 (4) an optometrist,

1 (5) a veterinarian,

2 (6) ~~a physician assistant or~~ an Advanced Practice

3 Registered Nurse under the supervision of a

4 licensed medical doctor or osteopathic physician,

5 or a physician assistant,

6 (7) a scientific investigator, or

7 (8) any other person,

8 licensed, registered or otherwise permitted to

9 prescribe, distribute, dispense, conduct research with

10 respect to, use for scientific purposes or administer

11 a controlled dangerous substance in the course of

12 professional practice or research in this state, or

13 b. a pharmacy, hospital, laboratory or other institution

14 licensed, registered or otherwise permitted to

15 distribute, dispense, conduct research with respect

16 to, use for scientific purposes or administer a

17 controlled dangerous substance in the course of

18 professional practice or research in this state;

19 43. "Production" includes the manufacture, planting,

20 cultivation, growing or harvesting of a controlled dangerous

21 substance;

22 44. "Serious illness" means a medical illness or physical

23 injury or condition that substantially affects quality of life for

24 more than a short period of time. Serious illness includes, but is

1 not limited to, Alzheimer's disease or related dementias, lung
2 disease, cancer, heart failure, renal failure, liver failure, or
3 chronic, unrelmitting, or intractable pain such as neuropathic pain;

4 45. "State" means the State of Oklahoma or any other state of
5 the United States;

6 46. "Straw person" or "straw party", also known as a "front",
7 means a third party who:

8 a. is put up in name only to take part in a transaction
9 or otherwise is a nominal party to a transaction with
10 no actual control,

11 b. acts on behalf of another person to obtain title to
12 property and executes documents and instruments the
13 principal may direct respecting property, or

14 c. purchases property for another for the purpose of
15 concealing the identity of the real purchaser or to
16 accomplish some purpose otherwise in violation of the
17 Oklahoma Statutes;

18 47. "Surgical procedure" means a procedure that is performed
19 for the purpose of structurally altering the human body by incision
20 or destruction of tissues as part of the practice of medicine. This
21 term includes the diagnostic or therapeutic treatment of conditions
22 or disease processes by use of instruments such as lasers,
23 ultrasound, ionizing, radiation, scalpels, probes, or needles that
24 cause localized alteration or transportation of live human tissue by

1 cutting, burning, vaporizing, freezing, suturing, probing, or
2 manipulating by closed reduction for major dislocations or
3 fractures, or otherwise altering by any mechanical, thermal, light-
4 based, electromagnetic, or chemical means;

5 48. a. "Synthetic controlled substance" means a substance:

- 6 (1) the chemical structure of which is substantially
7 similar to the chemical structure of a controlled
8 dangerous substance in Schedule I or II,
9 (2) which has a stimulant, depressant, or
10 hallucinogenic effect on the central nervous
11 system that is substantially similar to or
12 greater than the stimulant, depressant, or
13 hallucinogenic effect on the central nervous
14 system of a controlled dangerous substance in
15 Schedule I or II, or
16 (3) with respect to a particular person, which such
17 person represents or intends to have a stimulant,
18 depressant, or hallucinogenic effect on the
19 central nervous system that is substantially
20 similar to or greater than the stimulant,
21 depressant, or hallucinogenic effect on the
22 central nervous system of a controlled dangerous
23 substance in Schedule I or II.
24

1 b. The designation of gamma-butyrolactone or any other
2 chemical as a precursor, pursuant to Section 2-322 of
3 this title, does not preclude a finding pursuant to
4 subparagraph a of this paragraph that the chemical is
5 a synthetic controlled substance.

6 c. Synthetic controlled substance does not include:

7 (1) a controlled dangerous substance,

8 (2) any substance for which there is an approved new
9 drug application,

10 (3) with respect to a particular person any
11 substance, if an exemption is in effect for
12 investigational use, for that person under the
13 provisions of Section 505 of the Federal Food,
14 Drug, and Cosmetic Act, 21 U.S.C., Section 355,
15 to the extent conduct with respect to such
16 substance is pursuant to such exemption, or
17 (4) any substance to the extent not intended for
18 human consumption before such an exemption takes
19 effect with respect to that substance.

20 d. Prima facie evidence that a substance containing
21 salvia divinorum has been enhanced, concentrated, or
22 chemically or physically altered shall give rise to a
23 rebuttable presumption that the substance is a
24 synthetic controlled substance;

1 49. "Tetrahydrocannabinols" means all substances that have been
2 chemically synthesized to emulate the tetrahydrocannabinols of
3 marijuana, specifically including any tetrahydrocannabinols derived
4 from industrial hemp; and

5 50. "Ultimate user" means a person who lawfully possesses a
6 controlled dangerous substance for the person's own use or for the
7 use of a member of the person's household or for administration to
8 an animal owned by the person or by a member of the person's
9 household.

10 SECTION 9. AMENDATORY 63 O.S. 2021, Section 2-312, as
11 amended by Section 2, Chapter 184, O.S.L. 2022 (63 O.S. Supp. 2024,
12 Section 2-312), is amended to read as follows:

13 Section 2-312. A. A physician, podiatrist, optometrist or a
14 dentist who has complied with the registration requirements of the
15 Uniform Controlled Dangerous Substances Act, in good faith and in
16 the course of such person's professional practice only, may
17 prescribe and administer controlled dangerous substances, or may
18 cause the same to be administered by medical or paramedical
19 personnel acting under the direction and supervision of the
20 physician, podiatrist, optometrist or dentist, and only may dispense
21 controlled dangerous substances pursuant to the provisions of
22 Sections 355.1 and 355.2 of Title 59 of the Oklahoma Statutes.

23 B. A veterinarian who has complied with the registration
24 requirements of the Uniform Controlled Dangerous Substances Act, in

1 good faith and in the course of the professional practice of the
2 veterinarian only, and not for use by a human being, may prescribe,
3 administer, and dispense controlled dangerous substances and may
4 cause them to be administered by an assistant or orderly under the
5 direction and supervision of the veterinarian.

6 C. An advanced practice nurse who is recognized to prescribe by
7 the Oklahoma Board of Nursing as an advanced registered nurse
8 practitioner, clinical nurse specialist or certified nurse-midwife,
9 who is subject to medical direction by a supervising physician,
10 pursuant to Section 567.3a of Title 59 of the Oklahoma Statutes, and
11 who has complied with the registration requirements of the Uniform
12 Controlled Dangerous Substances Act, in good faith and in the course
13 of professional practice only, may prescribe and administer Schedule
14 III, IV and V controlled dangerous substances.

15 D. An advanced practice nurse who is recognized to order,
16 select, obtain and administer drugs by the Oklahoma Board of Nursing
17 as a certified registered nurse anesthetist pursuant to Section
18 353.1b of Title 59 of the Oklahoma Statutes and who has complied
19 with the registration requirements of the Uniform Controlled
20 Dangerous Substances Act, in good faith and in the course of such
21 practitioner's professional practice only, may order, select, obtain
22 and administer Schedules II through V controlled dangerous
23 substances in a preanesthetic preparation or evaluation; anesthesia
24 induction, maintenance or emergence; or postanesthesia care setting

1 only. A certified registered nurse anesthetist may order, select,
2 obtain and administer such drugs only during the perioperative or
3 periobstetrical period.

4 E. A physician assistant who is recognized to prescribe by the
5 State Board of Medical Licensure and Supervision under ~~the medical~~
6 ~~direction of a supervising physician, pursuant to~~ Section 519.6 of
7 Title 59 of the Oklahoma Statutes, and who has complied with the
8 registration requirements of the Uniform Controlled Dangerous
9 Substances Act, in good faith and in the course of professional
10 practice only, may prescribe and administer Schedule II through V
11 controlled dangerous substances subject to the restrictions in
12 Section 519.6 of Title 59 of the Oklahoma Statutes.

13 SECTION 10. REPEALER 59 O.S. 2021, Section 521.4, is
14 hereby repealed.

15 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
16 April 21, 2025 - DO PASS AS AMENDED
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